HEMANT SOREN

DIGGING IN HIS HEELS

By Amitabh Srivastava



SOMNATH SEN

PLEASE-ALL MISSION
CM Hemant Soren after his new domicile decision

After me, the deluge? No, with Jharkhand chief minister Hemant Soren, that could well be recast as 'After me, me'. The way he has been steel-plating himself through pitched battle, a phase that was to have felled him has actually seen Soren rise in stature as a political artist. From just another innocuous non-BJP CM, crisis has revealed him to be a nimble-footed, pugnacious opponent willing to redraw the rules—even controversially. On September 14, Soren's cabinet pushed the ceiling of reservations in government jobs up to 77 per cent and set 1932 as the cutoff year to determine domicile status. A day later, he tweeted a video of his supporters cheering, '*Jharkhand ka mukhyamantri kaisa ho, Hemant Soren jaisa ho*.' That may have seemed a bit strange to some. After all, that slogan is usually reserved for CM-wannabes. But those in the party who claim to read the CM's lips say it has future connotations.

In other words, Soren is anticipating a formal setback, and preparing for a stronger return. To begin with, he is battling multiple legal challenges, including the prospect of disqualification from the assembly. The BJP, Soren's main opponent, had petitioned Governor Ramesh Bais against him, saying a mining lease he owned violated the Representation of the People Act, 1951. Bais forwarded it to the Election Commission (EC), which sent its recommendation last month to the governor. Though Bais is yet to reveal the precise contents of the EC's direction, Soren is widely believed to be living on borrowed time.

He evidently knows it too. That's why he unilaterally called a kind of snap confidence motion on September 5: his JMM-Congress-RJD alliance duly bagged 48 votes in the 82-member assembly, including a nominated Anglo-Indian member. (The BJP has only 26 MLAs and its ally, AJSU Party, two.) Thus fortified, his rule legitimised in numerical terms on the floor of the House, Soren proceeded to his next step: that of securing a wider slice of popular support, so as to equip himself for the various what-if scenarios.

His September 14 decisions strike a rich lode of political ore, even if legally contentious. The 77 per cent reservation move, for instance, breaches the 50 per cent upper limit set by the Supreme Court. But its design is ingenious enough. While the Economically Weaker Section retains its 10 per cent quota in government jobs, those for Scheduled Tribes have been raised from 26 per cent to 28 per cent, for Scheduled Castes from 10 per cent to 12 per cent and, significantly, for OBCs from 14 per cent all the way up to 27 per cent.

THE CM'S TWIN DECISIONS ON SEPT. 14 ARE SEEN AS STEPS TO PREPARE FOR THE WHAT-IF SCENARIOS

The second decision is as eye-catching, and sure to set the terms of debate in a state carved out as a tribal homeland. Only those with 1932 *khatiyan* (proof of land document) will have domicile status and be eligible for reservation benefits. Those without land or their families named in the land records will have to get validation from their gram sabhas to obtain domicile. Implementation, thus, can get mired in a mess on the ground—that is, if it survives judicial scrutiny. When the state's first CM, Babulal Marandi, attempted to set a 1932 cutoff for domicile back in 2002, the move died in the courts.

With this move, Soren has overturned the preceding BJP government's 2016 decision that redefined 'locals' through an executive order, essentially setting 1985 as the cutoff year to determine domicile status. The then CM, Raghubar Das, was incidentally